SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO.	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	1240LU27Q0001	☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	10/14/2026	1 27

IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO.
	1154823	GAOA

7. ISSUED BY	CODE	8. ADDRESS OFFER TO
USDA-FS CSA INTERMOUNTAIN 9 324 25TH ST OGDEN UT 84401-2310	40LU	Judith Martin Email quotes to PPS.proposals@usda.gov

9. FOR INFORMATION CALL	a. NAME	b. TELEPHONE NO. *(Include area code) (NO COLLECT CALLS)*
	JUDITH MARTIN	208-346-1875

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date)*

GAOA Powell Duplex Improvements, Nez Perce - Clearwater National Forest.

All Contractors must be registered in the System for Award Management (www.SAM.gov) at time of submission of a quote. Contractors are responsible for following all submission instructions and to ensure delivery of all required documents by the date and time set for receipt of quotes or any Amendment that extends the receipt date.

- Proposal Evaluation and Basis for Contract Award: Starts on Page 19
- Quotation/Proposal Submittal Requirement: Starts on Page 21
- Bid Guarantee (FAR 52.228-1): 20% required if quote is in excess of $150,000. The SF-24 shall be used for Bid Bonds - https://www.gsa.gov/reference/forms/bid-bond
- Price Range: Between $250,000 and $500,000
- NAICS: 236118 with a Small Business Size Standard of $45 Million. This acquisition is a total Small Business set-aside.

KEY DATES

- Questions: See Page 23
- Site Visit: See Page 21

Continued ...

11. The Contractor shall begin performance within 10 calendar days and complete it within 0 calendar days after receiving ☐ award, ☒ notice to proceed. The performance period is ☒ mandatory ☐ negotiable. (See Technical Data (e).)

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	☒ YES ☐ NO	12b. CALENDAR DAYS
		10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1700 *(hour)* local time 11/13/2026 *(date)*. If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected .

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NO. *(Include area code)*
	16. REMITTANCE ADDRESS *(Include only if different than item 14.)*
CODE FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)*

AMOUNTS ▶

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20b. SIGNATURE	20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN ▶ *(4 copies unless otherwise specified)*	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) ( ) ☐ 41 U.S.C. 3304(a) ( )

26. ADMINISTERED BY CODE 40LU	27. PAYMENT WILL BE MADE BY
USDA-FS CSA INTERMOUNTAIN 9 324 25TH ST OGDEN UT 84401-2310	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return* 1 *copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations,certifications, and specifications incorporated by reference in or attached to this contract.*

☐ 29. AWARD *(Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.*

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*		31a. NAME OF CONTRACTING OFFICER *(Type or print)* WESLEY R. DUDLEY	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	- Date, Time and Place Quotes are Due: See Page 21 Delivery: 11/30/2027 Delivery Location Code: 03A0 USDA FOREST SVC POWELL RANGER STATION LOLO MT 59847 LOLO MT 59847 US Period of Performance: 12/01/2026 to 11/30/2027				
0001	GAOA Powell Duplex Improvements, Nez Perce - Clearwater National Forest. Base Item 0001 (GAOA Funding) - See Schedule of Items.				
0002	GAOA Powell Duplex Improvements, Nez Perce - Clearwater National Forest. Base Item 0001 (Quarters Funding) - See Schedule of Items.				
0003	GAOA Powell Duplex Improvements, Nez Perce - Clearwater National Forest. Option Item 0002 - See Schedule of Items. (Option Line Item)				

Attachment 1 - Solicitation Terms and Conditions

Powell Duplex Improvements
Lochsa-Powell Ranger District
Nez Perce – Clearwater National Forest
Idaho County, Idaho

STATEMENT OF REQUIREMENT

The project consists of removing and replacing the existing roof(s), water damaged Structurally Insulated Panels (SIP), some structural members in the roof and walls of an existing residential duplex. The existing demolished materials shall be disposed of off Forest Service lands in accordance with all State and federal laws. The Contractor shall provide all materials and labor necessary to complete the work in a professional workman like manner and in accordance with attached specifications and manufacturer's installation instructions and drawings.

The Powell Duplex is a 2-story, 2-units with 3-bedroom family housing residences. These are family housing for staff at Powell Ranger Station. The building is relatively new, with the plans dated 1994, but has been significantly damaged by water intrusion. Each had a woodstove in the living room near the exterior wall, with a chimney projecting near the bottom of the roof slope on each side of the building. The chimney crickets above each chimney were torn away, presumably by the movement of heavy snow, and the chimneys, roof and flashing were damaged. This allowed a large amount of water to leak into and through the roof, soffits, and walls. As a result, the structural insulated walls and roof panels (SIPs) at the chimney penetrations were heavily damaged, as well as several roof beams, adjoining wall panels, framing, ceiling, and floor finishes.

The building shall be protected from leakage and exposure due to weather during removal of the existing roof and ceiling. Contractor shall be responsible for verifying dimensions. All lots of roofing materials shall be from the same manufacturer to ensure consistency. Final cleanup shall be considered incidental to the work.

SCHEDULE OF ITEMS

Prices on the Schedule shall reflect Contractor's full cost for materials, labor, supervision, overhead costs, and incidental items.

See Attachment 2 – SOI Powell Duplex Improvements to this solicitation. Contractors must submit pricing for **ALL** line items listed in Attachment (2) – Schedule of Items. The completed Attachment must be included as part of the Contractor's Price Quote.

Definitization of Equitable Adjustments for Change Orders Pursuant to FAR 36.101-4(b), information regarding USDA's definitization of equitable adjustments for change orders under construction contracts may be found at Contracting with USDA | USDA. USDA's procedures that apply to the definitization of equitable adjustments for change orders under construction contracts may be found in AGAR 443.304-70.

TECHNICAL DATA

(a) Attachments:

See separate attached documents. The following attachments are a part of this solicitation and any resulting contract.

Attachment No	Description	Page(s)
2	Schedule of Items (SOI) for Powell Duplex Improvements	1
3	Specifications – Powell Duplex Improvements	159
4	Final Plan/Drawing Set – Powell Duplex Improvements	34
5	DBA WD ID20260002, Dated 05/18/2026, Idaho County, ID	4

(b) Specifications:

The CSI Specifications are included in a supplemental document package in Attachments listed above. All line items on Schedule of Items will further be detailed in the "Description of Work" section in all respective specifications. Some listed specifications in the schedule of items include reference specifications not listed and are subsidiary to or are included in payment for other pay items in this contract. Necessary reference specifications are indicated under each listed specification. These items are considered incidental, and no additional compensation will be made.

NOTE: Contractors are cautioned to carefully review these Project Specifications prior to submission of quotes. All specifications contained in the Attachments are binding on the parties signing the contract.

(c) Project Location:

The project is located approximately 95 miles northeast of Kamiah, Idaho. From Kamiah, follow Highway 12 east for approximately 95 miles to Lochsa Lodge. Turn right and follow the road approximately 0.5 miles to the Powell Ranger Station. The project 0.1 Miles from the Office building on the left side (46.509862,-114.707781).

(d) Start Work

It is estimated that work will begin on **December 1, 2026.**

(e) Commencement, Prosecution, and Completion of Work:

The Contractor shall be required to (a) commence work under this contract within **10 calendar days** after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than **November 30, 2027.** The time stated for completion shall include final cleanup of the premises.

(f) Government-Furnished Property:

The Government will provide the following items of Government property to the Contractor for use in the performance of this contract. This property shall be used and maintained by the

Contractor in accordance with the provisions of the "Government Property" FAR clause contained elsewhere in the contract. The following items will be government furnished:

*Building Keys

The Contractor shall use Government property, either furnished or acquired under this contract, only for performing this contract, unless otherwise provided for in this contract or approved by the Contracting Officer. Modifications or alterations of Government property are prohibited. Property must be returned to the Government upon contract completion.

(g) Use of Premises:

The Contractor shall comply with the regulations governing the operation of premises which are occupied and shall perform the contract in such a manner as not to interrupt or interfere with the conduct of Government business. With approval by the Lochsa Powell Ranger District, Contractor may use National Forest Lands for camping purposes.

(h) Physical Data:

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of/or conclusion drawn from the data or information by the Contractor.

Weather Conditions. The project is subject to seasonal limitations from October thru June. Wet and Snowy weather commonly limits construction operations from October thru June.

Transportation Facilities. Roads are open year around; however, snow conditions can be extreme from November-April.

(i)Other Factors Affecting The Work:

Safety. This administrative site will be open to the public and Government personnel during construction operations under this contract. Portions of the building or premises may be closed at the discretion of the CO. Site shall be kept clean, safe, and professional during contract period. The Contractor shall provide for the safety of the public and others present within the site, including preventing fall hazards for open trenches, protection from wires and electric shock, and maintaining a safe working space between moving machinery and the public. Roads shall be barricaded closed to prevent access to work sites.

All construction methods and procedures shall be in compliance with applicable OSHA regulations, 29 CFR art 1926 and Part 1910. Provide appropriate safety barricades and signs to protect the public from construction hazards.

The duplex will not be occupied during construction; however, to prevent disruption to residence within the administrative site working hours are restricted to between 07:30 a.m. and 05:00 p.m. PDT Monday through Friday.

(j) Work Camps, Staging and Storage Areas:

Areas for staging operations and storage of materials shall be approved by the CO. The Contractor must request in writing for approval from the CO to stage trailers (work) on site.

No overnight camping will be allowed on site without District Ranger approval.

(k) Clean Up

The Contractor shall maintain the work area in a clean and orderly condition. The work area shall be cleaned at the end of each workday. The work area shall be thoroughly cleaned of waste materials, nails, and debris at the end of the construction period.

(l) Site Superintendent

It shall be the responsibility of the Contractor to provide a responsible site superintendent to represent the Contractor in the field in all matters under this contract including, but not limited to construction, day-to-day coordination of activities, control over employees and subcontractors, and coordination with local Government personnel. The site superintendent shall be designated in writing. They shall be available on site in person to respond to any and all problems during normal working hours. The site superintendent shall be responsible for on-site Quality Control.

Site superintendent shall maintain on site a file containing the following project documents.

- Executed Copy of the Contract
- Contract Drawings
- Contract Specifications
- Quality Control Plan – (up to date)
- As-Built Drawing – (up to date) if required
- Work Orders
- Modifications

This file shall be maintained and available to the Contracting Officer upon request. If the Site Superintendent is replaced, the existing Superintendent shall review all documents and ongoing issues with the new Superintendent.

(m) Packing and Marking:

All shipments of materials, equipment and/or supplies shall be addressed to the Contractor and not to the Government.

(n) Project Labeling for Official Correspondence:

The Government singularly identifies each project with a contract number at time of award. The contract number is a unique identifier to purposely and permanently represent an awarded project. The Government issued contract number is to be referenced on all official communication starting upon notice of award.

(o) Invoicing:

The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP). All invoices shall be submitted via the electronic Invoice Processing

Platform. This platform is managed by the U.S. Department of Treasury and additional information is available at this website: https://www.ipp.gov/index.htm.

Upon award of a contract, Contractors will be enrolled automatically. Contractor will subsequently receive electronic notification from IPP of enrollment. IPP password will be delivered electronically to allow first login to IPP. Contractors shall submit all invoices electronically via IPP. Paper copies of invoices will no longer be accepted.

(p) Pre-Final and Final Inspection

(1) Pre-final Inspection: The Government may, at its own discretion, conduct a pre-final inspection prior to the contractor requesting a final inspection. Any discrepancies noted shall be corrected prior to final inspection.

(2) Final Inspection: When the work is ready for final inspection, the Contractor shall submit a written request for the final inspection to the duly assigned Contracting Officer's Representative at least seven (7) days prior to the desired final inspection date. The final inspection will be performed with the Contractor by the appropriate Government personnel. If any discrepancies are noted, they shall be handled in accordance with 52.246-12.

Federal Acquisition Regulation (FAR) and United States Department of Aquiculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

FAR 52.252-2 Clauses Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52.

(End of clause)

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)

This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance*. Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes.* Changes will be handled in accordance with the following FAR clause(s):

☒ FAR 52.243-4, Changes (Jun 2025)

☐ FAR 52.243-5, Changes and Changed Conditions (Jun 2025)

(o) Warranty. FAR 52.246-21, Warranty of Construction is applicable to this contract.

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.204-19 Incorporation by Reference of Representations and Certifications (Dec 2014)
52.222-50 Combating Trafficking in Persons (Nov 2025)
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3 Protest After Award (Sep 2025)
52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91 Security Prohibitions and Exclusions (Nov 2025)
52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

52.253-1 Computer Generated Forms (Nov 2025)

The following clauses are applicable if checked:

☒ 52.202-1 Definitions (Jun 2020)
☒ 52.203-3 Gratuities (Apr 1984)
☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
☒ 52.203-12 Limitation on Payments to Influence Certain Federal Transactions (Jun 2020)
☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
☒ 52.219-14 Limitations on Subcontracting (Nov 2025)
☒ By the end of the base term of the contract and then by the end of each subsequent option period; or
☐ By the end of the performance period for each order issued under the contract.
☒ 52.222-3 Convict Labor (Nov 2025)
☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Nov 2025)
☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Nov 2025)
☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (APR 2026)
☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
☒ 52.223-5 Pollution Prevention and Right-to-Know Information (May 2024)
☒ 52.223-23 Sustainable Products (Nov 2025)
☒ 52.227-1 Authorization and Consent (JUN 2020)
☒ 52.227-2 Notice and Assistance Regarding Patent and Copyright Infringement (JUN 2020)
☒ 52.229-3 Federal, State, and Local Taxes (JUL 2025)
☒ 52.229-12 Tax on Certain Foreign Procurements (Jul 2025)
☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
☒ 52.233-1 Disputes (Sep 2025) Alt I (Sep 2025)
☒ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (Nov 2025)
☒ 52.242-13 Bankruptcy (Jul 1995)

The Contractor shall comply with the following FAR Clauses for Commercial Construction:

52.222-6 Construction Wage Rate Requirements (Nov 2025)
52.222-7 Withholding of Funds (Nov 2025)
52.222-8 Payrolls and Basic Records (Nov 2025)
52.222-9 Apprentices and Trainees (Nov 2025)
52.222-10 Compliance with Copeland Act Requirements (Nov 2025)
52.222-11 Subcontracts (Labor Standards) (Nov 2025)
52.222-12 Contract Termination-Debarment (Nov 2025)
52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations (May 2014)
52.222-14 Disputes Concerning Labor Standards (Nov 2025)
52.222-15 Certificate of Eligibility (Nov 2025)
52.232-27 Prompt Payment for Construction Contracts (Jan 2017)
52.236-5 Material and Workmanship (Jul 2025)
52.246-21 Warranty of Construction (Mar 1994) Alternate I (Apr 1984)

The following clauses are applicable when checked:

☒ 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 (Nov 2025)
☒ 52.228-2 Additional Bond Security (Oct 1997)
☒ 52.228-5 Insurance-Work on Government Installation (Jan 1997)
☒ 52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
☒ 52.228-14 Irrevocable Letter of Credit (Nov 2014)
☒ 52.228-15 Performance and Payment Bonds-Construction (Jun 2020)
☒ 52.236-2 Differing Site Conditions (Jul 2025)
☒ 52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)
☒ 52.236-6 Superintendent by the Contractor (Jul 2025)
☒ 52.236-7 Permits and Responsibilities (Jul 2025)
☒ 52.236-8 Other Contracts (Jul 2025)
☒ 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
☒ 52.336-10 Operations and Storage Areas (Jul 2025)
☒ 52.236-11 Use and Possession Prior to Completion (Jul 2025)
☒ 52.236-12 Cleaning Up (Jul 2025)
☒ 52.236-13 Accident Prevention (Jul 2025)
☒ Alternate I (Nov 1991) of 52.236-13
☒ 52.236-14 Availability and Use of Utility Services (Jul 2025)
☒ 52.236-15 Schedules for Construction Contracts (Jul 2025)
☒ 52.236-17 Layout of Work (Jul 2025)
☒ 52.236-21 Specifications and Drawings for Construction (Jul 2025)
☒ Alternate I (Apr 1984) of 52.236-21

☒ 52.242-14 Suspension of Work (Apr 1984)
☒ 52.246-12 Inspection of Construction (Aug 1996)
☒ 52.248-3 Value Engineering (Oct 2025)

Other Applicable Clauses

52.245-1 Government Property (Sep 2021)
52.245-9 Use and Charges (Apr 2012)

Full Text FAR Clauses

FAR 52.217-7 Option for Increased Quantity – Separately Priced Line Item (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within **90 Calendar days from Contract Award Date**.

FAR 52.225-9 Buy American Act-Construction Materials (Nov 2025)

(a) *Definitions*. As used in this clause—

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if–

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference. (1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows: **None.**

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components*.

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)*(1)* of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)*(2)* of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components*.(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)*(1)* of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)*(2)* of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute. (1)(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute or Balance of Payments Program.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction material description	Unit of measure	Quantity	Price (dollars)*
Item 1:			
Foreign construction material.			
Domestic construction material.			
Item 2:			
Foreign construction material.			
Domestic construction material.			

[* *Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)*].

[*List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.*]

[*Include other applicable supporting information.*]

(End of clause)

FAR 52.252-6 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Agriculture Acquisition Regulation (48 CFR 4) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

AGAR Clauses

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf

Referenced AGAR Clauses

AGAR 452.203-70 Unenforceable Supplier Terms (Sep 2026)
AGAR 452.204-70 Modification for Contract Closeout (Apr 2026)
AGAR 452.211-73 Variation in Estimated Quantity (Sep 2025)
AGAR 452.232-71 Progress Payments for Commercial Construction Contracts (May 2026)
AGAR 452.232-72 Electronic Submission of Payment Requests (Sep 2026)

Full Text AGAR Clauses

Minimum Insurance Coverage Requirements

Pursuant to FAR clause FAR 52.228-5, Insurance-Work on a Government Installation paragraph (a), The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required, as stated below:

(1) Workers Compensation and Employer's Liability. The Contractor must comply with applicable Federal and State workman's compensation and occupational disease statutes. If these

diseases are not covered, they must be included under the employer's liability section of the policy, unless contract operations are commingled with the Contractor's commercial operations. Employer's liability coverage of at least $100,000 is required, except in States with exclusive or monopolistic funds that prohibit private carriers from providing workers' compensation.

(2) General Liability. The Contractor must have bodily injury liability insurance coverage written on a comprehensive form of policy of at least $500,000 per occurrence.

(3) Automobile Liability. The Contractor must have automobile liability insurance covering bodily injury and property damage for all vehicles used in the contract. For U.S. operations, the coverage must be at least $200,000 per person, $500,000 per occurrence for bodily injury, and $20,000 per occurrence for property damage or loss.

(4) Aircraft Public and Passenger Liability. When using aircraft for the contract, the Contractor must have aircraft public and passenger liability insurance. Coverage must be at least $200,000 per person, $500,000 per occurrence for bodily injury, excluding passengers. For passenger injury, coverage must be at least $200,000 multiplied by the number of seats or passengers, whichever is greater.

Solicitation Information

Award Type

This solicitation and any resulting contract is a firm-fixed price commercial construction type of contract.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the Contractor representing the best value to the Government.

The Government intends to evaluate quotations using a **comparative evaluation** methodology. This means quotations will be compared against one another to determine which provides the **best value** to the Government, based on the evaluation factors outlined below. The Government may consider quotations that **exceed minimum requirements** and offer **additional value or benefits**, even if they are not the lowest priced. However, **formal tradeoff procedures will not be conducted**. Initial proposals which do not include responses to any one of the technical factors will not be considered further.

(a) Technical Proposal:

(1) Factor 1: Technical and Performance Schedule

(ii) Subfactor 1 – Performance Schedule: The firm will be evaluated for a schedule within the mandatory period of performance with logical work progression, represents the least amount of disruption to residents of the administrative site, to meet the requirements of the statement of work and specification requirements. The Government will assess the realism of proposed completion dates, given the resources to be devoted to the work.

(ii) Subfactor 2 – Technical Approach: When evaluating the firm's Technical Approach to performing this project, the Government will assess the understanding, reasonableness, logic and realism of the firm's proposed approach to scheduling, executing, managing and completing this project.

(2) Factor 2: Experience and Project Management

The Government will assess the specialized experience, capabilities, and skill of the firm as an organization, with a focus on technical experience that is relevant to the specified project.

Relevant experience is one that is similar in nature or scope to the technical experience required for this project.

(3) Factor 3: Past Performance

Past performance is a measure of the degree to which the firm (including major subcontractors) has satisfied previous customers and complied with Federal, State and Local laws and regulations. The Government may contact references to assess the quality of the contractor's work, timely completion, project management, and compliance with regulatory requirements. The Government will consider the currency and relevance of the information, source of the information, context of the data and general trends in contractor performance. The Government reserves the right to consider all aspects of a firm's performance history but will attribute more significance to recent work comparable in scope to this solicitation.

The past performance evaluation will characterize the level of the Government's confidence that the firm will successfully complete the work, in compliance with all contract requirements, based on its record of successful performance on recent and relevant similar projects. In addition to past performance information submitted by the firm, the Government may use personal knowledge or information obtained from other sources, such as CPARS, Federal Awardee Performance and Integrity Information System (FAPIIS), or any other sources available to the Government, in its evaluation of a firm's past performance.

Where there is little or no information available regarding the firm's past performance history because the firm is new to the marketplace, the past performance evaluation may take into account information regarding predecessor companies, key personnel who have relevant experience, or subcontractors that will perform major or critical aspects of the work.
Note: The assessment of past performance is separate from the responsibility determination required under FAR Subpart 9.1.

Assessment: Based on the recency, relevancy, and quality of past performance, the Government will assign one of the following ratings:

- Acceptable – Government has a high expectation of successful performance.
- Unacceptable – Government has concerns about successful performance.
- Neutral – No relevant past performance available; no positive or negative inference will be made.

(b) Price Quotation:

The proposed price will be evaluated for reasonableness in accordance with FAR 12.204. This criterion will include consideration of cost information provided in the Schedule of Items (Attachment 2). It is the Government's intent to assess the price/cost breakdown to determine: (1) Reasonableness (Adequate price competition and comparison to the IGE will establish a fair and reasonable price), and (2) Price Consistency (Unit prices will be evaluated to determine if costs/prices are balanced and consistent with Government cost estimates and those of other quotes).

(End of provision)

Date, Time, and Place Quotes are due:

All documents shall be Microsoft Word, Microsoft Excel, or Adobe PDF. Each part shall be separate, complete, and clearly identified. Documents are to be emailed to the Contract Specialist Judith Martin at PPS.proposals@usda.gov no later than the date and time specified on the SF-1442 or any Amendment that extends the time and date. Please include the solicitation name and number as the subject line of the email. It is the vendor's responsibility to ensure delivery of all required documents by the date and time set for receipt of quotes. Quotes received after the exact date and time specified for receipt of quotes will not be considered. Contact the Contract Specialist by email at **Judith.martin@usda.gov** if you do not understand any part of these instructions.

Site Visit:

The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, Contractors are urged and expected to inspect the site where the work will be performed.

(a) A Microsoft Teams Pre-Quote Meeting: **October 28, 2026 @ 2:00 p.m. PDT. Email Judith Martin at Judith.martin@usda.gov to receive the TEAMS link.**

(b) An organized site visit has been scheduled for: **October 29, at 10:00 a.m. PDT.**

(c) Participants will meet at: **Powell Ranger District Office. From Kamiah, follow Highway 12 east for approximately 95 miles to the Lochsa Lodge. Turn right and follow the road approximately 0.5 miles to the Powell Ranger Station.**

FAR 52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52.

(End of provision)

FAR 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

Addenda to Provision FAR 52.212-1 paragraph (a) Submission of Offers:

NOTE: To assist in the evaluation, you should number your responses to correspond with the criterion being addressed. As a minimum, the technical portion of your proposal must clearly provide the following information:

(a) Technical Proposal Instructions:

(1) Factor 1. Technical and Performance Schedule

(i) Subfactor 1 – Performance Schedule: Describe all significant work tasks, the sequence in which they are to be performed, and the workers and equipment to be assigned. Include the proposed time to be devoted to each task.

Specifically address:

(c) Proposed start and completion dates for each significant task and overall project
(d) Product, Material, and Subcontractor sources for major work items
(e) Provide a Workforce Utilization Plan that details how your firm intends to utilize Contractor's labor and subcontractors.

(ii) Subfactor 2 - Technical Approach: Describe your firm's planned approach to performing this project. Include (1) the type of equipment to be used; (2) logistical and transportation process of crew/equipment and material delivery; (3) crew accommodations, if applicable; (4) basic control plan for accommodating public/personnel safety; and (5) biobased products to be used in the accomplishment of the work.

(2) Factor 2. Experience and Project Management: Provide an organizational chart and/or summary of the overall company organizational structure, from principle/ownership level to field level. Describe the experience of the prime and subcontractors in roofing, roofing design, installation of SIP panels, and renovations of homes/buildings. Describe the prime Contractors experience with large construction projects with multiple timelines and public traffic accommodation during projects. Also address any other work similar to that required by this contract.

Identify the Project Manager(s), Site Superintendent(s), Quality Control Manager(s), Safety Officer(s), and proposed subcontractors to be assigned to the project. For each of these, list their relevant licenses, certifications, and experience in the type of work to be done under this contract.

(3) Factor 3. Past Performance: *S*ubmit a list of relevant past or ongoing work the firm has performed within the past 5 years, along with contact information so that the Government may query prior customers. Relevant past work means work that is similar in nature or scope to this project. Information should include:

(1) the project name or title;
(2) location;
(3) description of the work the firm performed on the project;
(4) dollar value;
(5) company or organization name of project owner; and
(6) Point of Contact (POC) name/phone/email of project owner representative.

The firm may provide information on problems encountered on the identified projects and the firm's corrective actions. The firm may provide a signed letter from the project owner specifying the work performance of the company on the project and/or a completed CPARS report from a government customer for projects listed.

If using subcontractors that have a meaningful involvement in contract performance, please describe their work completed within the past 3 years. The Government may consider the relevant past performance history of key individuals and subcontractors in evaluating past performance. The Government may contact a sample of your past customers concerning the quality of services provided by your firm and your subcontractors; timeliness of performance; business relations during project management such as flexibility, problem solving, and cooperation; customer satisfaction; and cost control.

(b) Price Quote Instructions:

All Contractors must provide the following minimum information and documentation with their quotations to be considered responsive and have their quotes evaluated.

1) **Signed Standard Form 1442, Solicitation/Offer/Award** (Construction, Alteration, Repair), with blocks 14 – 20c completed by the Contractor.

2) **Schedule of Items (Attachment 2)**, may be submitted either in an Excel spreadsheet or in the Adobe Acrobat PDF format. Contractors shall submit a quote for all Items in the Schedule of Items. Failure to comply with the instructions may render your proposal nonresponsive and ineligible for contract award. In the event of an error in extending the proposed prices, unit prices will govern, unless otherwise determined by the Contracting Officer, in accordance with applicable regulations.

The Government will evaluate quotations for award purposes by adding the total price quoted for any Base Items and Optional Items proposed. Evaluation of base and optional items will not obligate the Government to award the items. Award of base items will depend on availability of funds at time of award. For award of optional items, see FAR clause 52.217-7. Optional items may be awarded in any order and depend upon funds availability.

3**) Acknowledgement of solicitation amendments (if any).** This can be accomplished by completing section 19 on the SF-1442 or by submitting the signed SF-30(s) from SAM.gov with your price proposal.

4) **Scanned copy of fully executed Bid Guarantee** (Standard Form 24 and Power of Attorney). The SF-24 shall be used for Bid Bonds - https://www.gsa.gov/reference/forms/bid-bond

It is the contractor's responsibility to ensure delivery of all required documents by the date and time set for receipt of quotes.

(End of provision)

Questions

Inquiries and all correspondence concerning this solicitation should be submitted in writing to the Contract Specialist. Contractors should contact only the Contract Specialist issuing the solicitation about any aspect of this requirement prior to contract award. Inquiries may be emailed to Contract Specialist a**t Judith.martin@usda.gov** no later than **November 3, 2026 5:00 p.m. PDT**. Please include the solicitation name and number as the subject line of the email.

FAR 52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52.
(End of provision)

Provisions Incorporated by Reference:

FAR 52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements – Representation (JAN 2017)
FAR 52.209-2	Prohibition on Contracting with Inverted Domestic Corporations – Representation (SEP 2025)
FAR 52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (SEP 2025)
FAR 52.240-90	Security Prohibitions and Exclusions Representations and Certifications (NOV 2025)

The following provisions are applicable:

FAR 52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (SEP 2024)
FAR 52.204-7	System for Award Management – Registration (NOV 2025)
FAR 52.217-5	Evaluation of Options (NOV 2025)
FAR 52.222-5	Construction Wage Rate Requirements—Secondary Site of the Work (NOV 2025)
FAR 52.225-10	Notice of Buy American Act Requirement—Construction Materials (MAY 2014) Alternate I (MAY 2014)
FAR 52.228-17	Individual Surety – Pledge of Assets (Bid Guarantee) (FEB 2021)

FAR 52.229-11	Tax on Certain Foreign Procurements—Notice and Representation (JUL 2025)
FAR 52.233-2	Service of Protest (SEP 2025)

Full Text FAR Provisions

FAR 52.228-1 Bid Guarantee (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds –

(1) To unsuccessful bidders as soon as practicable after the opening of bids, and
(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.
(3) The amount of the bid guarantee shall be 20 percent of the bid price.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of provision)

FAR 52.252-5 Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Agriculture Acquisition Regulation (48 CFR Chapter 4) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Protest Procedures

The United States Department of Agriculture (USDA) is committed to fair, transparent, and efficient acquisitions. Interested parties with concerns about this solicitation are encouraged to seek resolution through the following USDA procedures.

Tier 1: Contracting Officer Concern Resolution

Submission: Interested parties with concerns about either the solicitation or subsequent award should first submit their concern directly to the Contracting Officer, providing sufficient detail to allow the Contracting Officer to understand and assess the issue.

Process: The Contracting Officer will review the concern, seek clarification as needed, and engage with the interested party to attempt prompt resolution.

Review Timeline: The Contracting Officer will make every effort to provide a response or resolution within 10 business days of receiving the concern.

Effect on Award or Performance: Tier 1 engagement is not considered an official notification of filing an agency protest and does not pause solicitation deadlines, delay award decisions, or suspend contract performance.

Next Steps: If the matter cannot be resolved at Tier 1, the interested party may file a written agency protest under Tier 2.

USDA encourages all parties to seek resolution with the Contracting Officer before filing an agency protest.

Tier 2: Agency Protest

If concerns cannot be resolved at Tier 1, an interested party may file a written agency protest with either the Contracting Officer or the USDA Independent Review Authority. The decision by the USDA Independent Review Authority is an alternative to a decision by the Contracting Officer. The USDA Independent Review Authority will not consider an appeal of the Contracting Officer's decision on an agency protest.

The protest must state whether the protester elects review by the Contracting Officer, by the UDSA Independent Review Authority. If no election is stated, the Contracting Officer will decide the protest.

Required Information: Protests shall include the information set forth in FAR 33.104-4 (a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Submission: Agency protests should be submitted electronically to SPE.inquiry@usda.gov and

the Contracting Officer.

Timeliness: Protests must be filed within the timeframes specified in FAR 33.104.

Effect on Award or Performance: Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined to be in the best interest of the Government.

Review Timeline: USDA strives to resolve agency-level protests within 35 business days of receipt.

Election of Forum: By filing a protest with USDA, the protesters agree not to file a protest on the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If such a protest is filed externally, the USDA agency protest will be dismissed.

Questions: Questions regarding this notice or protest procedures should be directed to the Contracting Officer identified in this solicitation.